

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

=====X
STEVEN RUBENSTEIN,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER/SERGEANT/DETECTIVE/
AND/OR LEUITENANT FITZGERALD AND
SERGEANT CLAXTON,**

Defendant(s).

=====X
TO THE ABOVE-NAMED DEFENDANT(S):

**Index No:
Date Filed:**

**Plaintiff designates KINGS
County as the place of trial.**

**The basis of venue is
LOCATION OF INCIDENT.**

SUMMONS

County of Kings

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 16, 2020
New York, New York

Yours, etc.,
GERMAN RUBENSTEIN LLP

Defendant(s)' addresses:

(SEE ATTACHED RIDER)

By: _____

JOEL M. RUBENSTEIN, ESQ.
Attorneys for Plaintiff
19 West 44th Street, Suite 1500
New York, New York 10036
Phone: (212) 704-2020

THIS ACTION IS NOT BASED UPON A CONSUMER CREDIT TRANSACTION

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

STEVEN RUBENSTEIN,

X

VERIFIED COMPLAINT

Plaintiff,

-against-

**THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER/SERGEANT/DETECTIVE/
AND/OR LEUITENANT FITZGERALD AND
SERGEANT CLAXTON,**

Defendant(s).

X

County of Kings

Plaintiff, by his/her attorneys GERMAN RUBENSTEIN LLP, complaining of the defendants, respectfully sets forth and alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff STEVEN RUBENSTEIN was and still is a resident of the City and State of New York, County of Kings.

2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a corporation doing business in the State of New York.

4. That at all times hereinafter mentioned, the defendant THE CITY OF NEW

YORK operated a police department as part of and in conjunction with its municipal function.

5. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK maintained said police department.

6. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK managed said police department.

7. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK controlled said police department.

8. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers, sergeants, and other personnel, to work as representatives of THE CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUITENANT FITZGERALD AND SERGEANT CLAXTON

10. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK employed detective, lieutenants, and police officers, known herein POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUITENANT FITZGERALD AND SERGEANT CLAXTON.

11. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of its said servants, agents, detectives, police officers, and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

12. That at all times hereinafter mentioned, the defendant THE CITY OF NEW

YORK, had the duty to ensure that its said servants, agents, detectives, police officers, and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

13. That at all times hereinafter mentioned, the defendants POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUIITENANT FITZGERALD AND SERGEANT CLAXTON were each servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

14. That on the 23rd day of June 2019, the plaintiff STEVEN RUBENSTEIN was lawfully present at the 77th Precinct, Brooklyn, New York, in the City and State of New York, County of Kings.

15. That on the 23rd day of June 2019, certain police officers, detectives and/or servants and/or agents of the police department of the defendant THE CITY OF NEW YORK, including POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUIITENANT FITZGERALD AND SERGEANT CLAXTON, were present at 77th Precinct, Brooklyn, in the City and State of New York, County of Kings.

16. That on the 23rd day of June, 2019, the plaintiff was unlawfully seized, assaulted and battered by said police officers, detectives and/or agents and/or servants of the Police Department of the defendant, THE CITY OF NEW YORK, while he was lawfully at the 77th precinct, in the City and State of New York, County of Kings.

17. That on the 23rd day of June, 2019, the plaintiff was unlawfully seized, assaulted and battered by POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUIITENANT FITZGERALD AND SERGEANT CLAXTON, while he was lawfully at the 77th precinct, in the City and State of New York, County of Kings.

18. That on the 23rd day of June, 2019, the plaintiff was negligently, wantonly, intentionally, maliciously, illegally and unlawfully seized, assaulted, detained, battered, restrained, maliciously and wrongfully ejected from the 77th precinct.

19. That on the 23rd day of June, 2019, the plaintiff was negligently, wantonly, intentionally, maliciously, illegally and unlawfully seized, assaulted, detained, battered, restrained, maliciously and wrongfully ejected from the 77th precinct by POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUITENANT FITZGERALD AND SERGEANT CLAXTON.

20. That on the 23rd day of June, 2019, the plaintiff was negligently, wantonly, intentionally, maliciously, illegally and unlawfully battered, abused, threatened and manhandled, by police officers, detectives and/or agents and/or servants of the police department of defendant, THE CITY OF NEW YORK, while he was lawfully present at the 77th Precinct, in the City and State of New York, County of Kings, and continuing thereafter at other locations.

21. That on the 23rd day of June, 2019, the plaintiff was negligently, wantonly, intentionally, maliciously, illegally and unlawfully battered, abused, threatened and manhandled, by POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUITENANT FITZGERALD AND SERGEANT CLAXTON, while he was lawfully present at the 77th Precinct, in the City and State of New York, County of Kings, and continuing thereafter at other locations.

22. That the foregoing occurrences and the resulting injuries to the plaintiff was caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force and wrongful assault and battery on the part of the police department of defendant, THE CITY OF NEW YORK, its servants, agents, police officers, detectives and/or employees, in violation of the plaintiff's Civil and

Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

23. That the foregoing occurrences and the resulting injuries to the plaintiff was caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force and wrongful assault and battery on the part of the police department of defendant, by POLICE OFFICERS SERGEANT/DETECTIVE/ AND/OR LEUIITENANT FITZGERALD AND SERGEANT CLAXTON, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

24. This action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, including the Civil Rights Act, Title 42 of the United States Code, Sections 1981, 1983 and 1988 and the rights under the Constitution and laws of the State of New York.

25. Each and all of the acts of the defendants herein were done by the defendants, jointly and severally, and their respective servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

26. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such

injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue her usual duties with the same degree of efficiency as prior to this occurrence, all to their great damage.

27. That on/or about August 26 and 27, 2019, and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff, and plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

28. That plaintiff appeared for a hearing pursuant to Rule 50 (h) of the Municipal Law on March 27, 2020, and that his testimony was taken at that time with respect to the facts and circumstances surrounding the within claim.

29. That more than thirty (30) days have elapsed since the aforesaid Notices of Claim was served on the said defendant.

30. That the said defendants were, jointly and severally, negligent and has refused and neglected to adjust, settle and pay same.

31. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

32. That all conditions and requirements precedent to the commencement of this action have been complied with.

33. That this action falls within one or more of the exceptions set forth in CPLR 1602.

34. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in the first cause of action with the same force and effect as if fully set forth herein.

36. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, and he was put in fear for his safety.

37. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in the first and second causes of action with the same force and effect as if fully set forth herein.

39. Upon information and belief, beginning on or around June 23rd, 2019 and at all times hereinafter mentioned, the defendants, jointly and severally, had an obligation and duty to hire, retain, instruct and supervise their officers, detectives, agents, servants and employees to perform services competently.

40. Upon information and belief, on or around June 23rd, 2019 and at all times hereinafter mentioned, the defendants, jointly and severally, breached this duty by negligently,

carelessly and recklessly hiring, retaining, instructing and supervising their officers, detectives, servants and employees.

41. At all times hereinafter mentioned, defendants were aware that the names defendants including all John and Jane Does had a history of assaulting, battering, unlawfully restraining, detaining, and arresting individuals.

42. Solely as a result of the defendants' negligence and carelessness and reckless hiring, retention, instruction and supervision of its servants and employees, without any negligence on the part of the plaintiff contributing thereto, plaintiff suffered great bodily injuries to the head, body and limbs, with accompanying conscious pain and suffering.

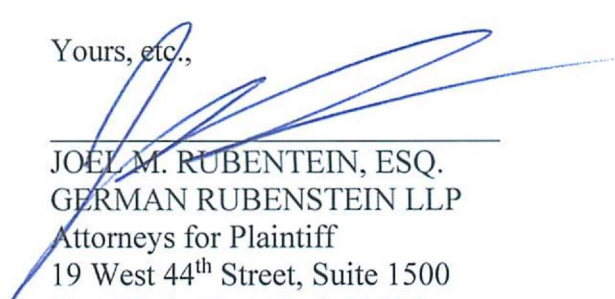
43. This action falls within one or more of the exceptions set forth in C.P.L.R. § 1602.

44. By reason of the foregoing, the plaintiff has been damaged in an amount that exceeds the monetary jurisdictional limits of any and all lower Courts that would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendant, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower Courts that would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs, disbursements and attorney fees of this action and with interest from the date of this occurrence.

Dated: September 16, 2020
New York, New York

Yours, etc.,



JOEL M. RUBENTEIN, ESQ.
GERMAN RUBENSTEIN LLP
Attorneys for Plaintiff
19 West 44th Street, Suite 1500
New York, New York 10036
Phone: (212) 704-2020
Fax: (212) 704-2077

ATTORNEY VERIFICATION

STATE OF NEW YORK }
 {ss.:
COUNTY OF NEW YORK }

Joel M. Rubenstein, an attorney duly admitted to practice before the Courts of the State of New York hereby affirms the truth of the following under penalty of perjury:

I am a member of the law firm of German Rubenstein LLP, and as such am fully familiar with the facts and circumstances herein.

I have read the foregoing COMPLAINT and know the contents thereof to be true to my knowledge, except as to those matters therein stated upon information and belief, and as to those matters I believe them to be true.

The grounds of my belief as to those matters stated upon information and belief are as follows: records and investigation reports on file.

The reason that this verification is being made by me and not the plaintiff personally is that plaintiff is presently not within the county where I maintain my office for the practice of law.

Dated: September 16, 2020
New York, New York



JOEL M. RUBENSTEIN